

Ex. No.686/2023

Orders on memo of calculation
filed on 12.07.2024

As per the said memo of calculation, the decree holder claims the balance amount of Rs. 14,100/- as on 23.04.2024.

The JDr No.2 filed detailed objections.

On that basis the point for consideration is as under:

“Whether the JDRs are liable to make payment of amount as claimed in the memo of calculation ?”

Heard the arguments. Perused the materials on record, on that basis, my finding is in the affirmative, for the following:

REASONS

Point: This Execution Petition is filed to enforce the award passed in L.A.C. No.134/2016. As per the

award, the JDRs are liable to pay further interest @ 15% p.a., for subsequent years till deposit of entire compensation amount. The said judgment has been passed on 05.01.2023. Subsequently this Execution Petition is filed. Admittedly the JDRs deposited the amount to the Court on 05.03.2024. As per memo of calculation, the balance amount due from the JDRs to the decree holder as on 03.06.2023 is Rs. 1,09,090/- and the said amount has been deposited to the Court on 05.03.2024. Therefore, the entire amount has not been deposited to the Court till 05.03.2024. Admittedly as per the award, the JDRs are liable to pay 15% interest on the balance amount or enhanced amount. The said award has not been challenged by the JDRs. As such, the JDRs are liable to pay 15% interest on the enhanced compensation amount. When the office memo of calculation is not disputed by the JDRs, it has to be inferred that the JDRs are admitting the office memo of calculation. As per the office memo of calculation the

balance amount of Rs. 1,09,090/- has been deposited to the Court as on 05.03.2024. Therefore, the JDRs are liable to pay interest @ 15% on Rs. 1,09,090/- from 03.06.2023 till payment of the said amount. Hence, the JDRs are liable to pay the said amount as claimed in the memo of calculation by the decree holder. Hence, objection of the JDr No.2 is that the JDRs are not liable to pay the amount claimed in the memo of calculation, it cannot be accepted. Hence, it has to be over-ruled. Hence, objection filed by the JDr No.2 to the memo of calculation is hereby over-ruled and the JDRs are liable to pay the amount as per the said memo of calculation. Hence, the above point is answered in the affirmative. In the result, I proceed to pass the following:

ORDER

The objection filed by the JDr No.2 to the memo of calculation is hereby over ruled.

JDRs are liable to pay the balance amount as claimed in the memo of calculation.

For payment by 10.02.2025.

(PADMA PRASAD)
II Addl. City Civil and Sessions
Judge, & Spl. Judge, Bengaluru.

